

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
GARRY OBERMAN and YULIA OBERMAN,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and P.O.
MAX KATZ.

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONS to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Kings County, New York
November 21, 2013

Yours, etc.



ELLIOTT KATSNELSON, ESQ.
1711 Kings Highway – 3rd Floor
Brooklyn, NY 11229
(718) 306-1570

Defendants' Address:

THE CITY OF NEW YORK: COMPTROLLER'S OFFICE
1 Center St. – Room 1225
NY, NY 10007

Filed: _____

Index No.: _____

Tort Action

Plaintiff designates
KINGS COUNTY
As place of trial

The basis of venue is
Residence of Plaintiffs

SUMMONS:

Plaintiffs reside at
1051 Ocean View Ave
County of Kings.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
GARRY OBERMAN and YULIA OBERMAN,

Plaintiffs,

Index No.: _____

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and P.O.
MAX KATZ.

VERIFIED COMPLAINT:

Defendants.
-----X

Plaintiffs, GARRY OBERMAN and YULIA OBERMAN by and through their attorney, ELLIOTT KATSNELSON, ESQ. complaining of Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and P.O. MAX KATZ allege, upon information and belief, as follows:

At all times mentioned, the Plaintiffs, GARRY OBERMAN and YULIA OBERMAN were residents of the County of Kings, City and State of New York.

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly existing under the laws of the State of New York.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the THE NEW YORK CITY POLICE DEPARTMENT, including all police officers thereof.
3. At all times hereinafter mentioned, the Defendant, P.O. MAX KATZ, was an employee and/or agent of the New York City Police Department, a

municipal agency of the City of New York. The Defendant, P.O. MAX KATZ is sued individually and in his official capacity.

4. At all times hereinafter mentioned, the Defendant, P.O. MAZ KATZ, was acting within the scope of his employment as a police officer with the THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT .
5. At all times hereinafter mentioned, the Defendant, P.O. MAX KATZ was acting under color of law and authority as a police officer with the Police Department of the City of New York.
6. On February 25, 2013 and within ninety (90) days of the occurrence complained of herein, Plaintiffs duly served a Notice of Claim upon The City of New York.
7. Plaintiffs duly served a Notice of Claim upon the City of New York in the manner and mode required by law.
8. That on May 8, 2013, Plaintiffs, GARRY OBERMAN and YULIA OBERMAN appeared for a hearing pursuant to General Municipal Law Sec. 50-h.
9. That thirty (30) days have elapsed since the service of said Notice of Claim and Plaintiffs' claims have not been adjusted or paid.
10. That this action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.
11. That Plaintiffs have complied with all conditions precedent applicable to the instant action.
12. That this action falls within one or more of the exceptions of CPLR § 1602, including, but not limited to CPLR Sec. 1602 (11).

AS AND FOR A FIRST CAUSE OF ACTION

13. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "12" above as if fully set forth herein.
14. On November 27, 2012, at approximately 4:30 p.m., while lawfully at their premises located at 1051 Ocean View Avenue, Brooklyn, NY, the Plaintiffs, were violated, verbally assaulted, harassed and threatened without provocation or justification, without probable cause, without an arrest warrant and in bad faith by P.O. MAX KATZ, who was employed by Defendant, THE CITY OF NEW YORK and THE CITY OF NEW YORK POLICE DEPARTMENT.
15. As a result of the foregoing, the Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.
16. As a result of the foregoing, Plaintiffs, demand judgment against Defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "16" above as if fully set forth herein.
18. On November 27, 2012, at approximately 4:30 p.m., while lawfully

at their premises located at 1051 Ocean View Avenue, Brooklyn, NY, the Defendant P.O. MAX KATZ did wrongfully detain the Plaintiffs without probable cause, without an arrest warrant and in bad faith.

19. In commencing and continuing said wrongful detainment the Defendants caused Plaintiffs to be wrongfully detained in violation of the Penal Laws of the State of New York and their constitutional rights.
20. At the time of the unlawful detainment, the Plaintiffs had not committed any illegal act.
21. At the time of Plaintiffs unlawful detainment, the Plaintiffs had not committed or attempted to commit any crime.
22. The Plaintiffs had not given the Defendants probable cause to believe that they had committed any illegal acts.
23. At the time of Plaintiffs' unlawful detainment, the Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned detainment was false and without justification.
24. The Defendants THE CITY OF NEW YORK, including, but not limited to Defendant, P.O. MAX KATZ acted in bad faith and without justification in committing the aforesaid detention of the Plaintiffs.
25. The Defendants willfully and wrongfully accused Plaintiffs of having committed a crime.
26. As a result of the foregoing, the Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

27. As a result of the foregoing, the Plaintiffs, demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

28. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "27" above as if fully set forth herein.
29. On November 27, 2012, at approximately 4:30 p.m., while lawfully at their premises located at 1051 Ocean View Avenue, Brooklyn, NY, the Defendant P.O. MAX KATZ improperly, forcibly and without a warrant, right or privilege entered said premises.
30. The Defendants, by and through its agents, servants and/or employees, including to the Defendant P.O. MAX KATZ intentionally, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.
31. As a result of Defendants' intentional action of the Defendant P.O. MAX KATZ the Plaintiffs were caused to suffer personal injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.
32. As a result of the Defendants' negligence, Plaintiffs, demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

33. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "32" above as if fully set forth herein.
34. On November 27, 2012, at approximately 4:30 p.m., while lawfully at their premises located at 1051 Ocean View Avenue, Brooklyn, NY, the Defendant P.O. MAX KATZ improperly, forcibly and without a warrant, right or privilege entered said premises.
35. The actions of Defendants heretofore described constitute unlawful detention, assault and battery and were designed to and did cause specific and serious harm, pain and suffering in violation of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. §1983 and the Fourth and Fourteenth Amendments to the United State Constitution and the Constitution of the State of New York.
36. The Defendants violated Plaintiffs' civil rights by subjecting them to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
37. The actions of the Defendants, THE CITY OF NEW YORK, and P.O. MAX KATZ heretofore described constitute unlawful detention, assault and battery and were designed to and did cause specific and serious emotional harm, pain and suffering in violation of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
38. That the conduct and actions of Defendants, THE CITY OF NEW YORK and P.O. MAX KATZ, acting in concert and under color of State law, in

entering the Plaintiff's residence, detaining the Plaintiffs, was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious harm and suffering in violation of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

39. The Defendants THE CITY OF NEW YORK and P.O. MAX KATZ acting in concert, deprived Plaintiffs of their liberty in violation of their civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
40. The Defendants, THE CITY OF NEW YORK through P.O. MAX KATZ entered Plaintiffs' residence without a warrant and without probable cause in violation of Plaintiffs' civil and constitutional rights, as set forth in the Fourth Amendment of the United States Constitution.
41. The actions taken by the Defendants, THE CITY OF NEW YORK through P.O. MAX KATZ were undertaken under color of law and would not have existed but for said Defendant, THE CITY OF NEW YORK through P.O. MAX KATZ using his official power.
42. As a result of the above constitutionally impermissible conduct, the Plaintiffs were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

43. As a result of the Defendant's impermissible conduct, the Plaintiffs, demand judgment against the Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

44. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "43" above as if fully set forth herein.
45. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK and The NEW YORK CITY POLICE DEPARTMENT, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual engaged in such practices.
46. The Defendant, CITY OF NEW YORK, has failed to properly and effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.
47. The Defendant, CITY OF NEW YORK, hired and retained in its employ certain P.O. MAX KATZ, with knowledge that said police officer had vicious propensities and was, therefore, unfit to be a police officer.
48. At all times material to this Complaint, the Defendant, CITY OF NEW YORK, acting through its police department, had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of the Defendant, P.O. MAX KATZ.
49. These policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise

control police officers who engaged in the improper use of their official position, use of force or in warrantless and otherwise unconstitutional entry or otherwise impermissible acts, particularly those who are repeatedly accused of such acts; the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

50. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:
- (a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
 - b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
 - c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
 - d) The fact that, upon information and belief, only a small number of police officers have been were fired for brutality/improper conduct since 1989.
 - e) The fact that of the complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

51. The policymakers of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT knew or should have known that

Defendant police officer was violating people's Constitutional rights to be free from warrantless entries in violation of their right to privacy and that Defendants were taking action that was shocking the conscience or otherwise violating the substantive due process rights of the people of Kings County.

52. The fact that in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, the THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT Defendant, CITY imposes no discipline, either before or after the Court resolution, almost never even reopens an investigation previously conducted after such a resolution; and sometimes promotes the officer to a position of greater authority despite the resolution.
53. Defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT tolerates and encourages police to lie to cover up the wrongful conduct of themselves and other officers, as evidenced by the Mollen Commission Report, July 7, 1994.
54. On information and belief, Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, CITY failed to effectively screen, hire, train, supervise and discipline its police officers, including, but not limited to, Defendant P.O. herein MAX KATZ, for his propensity for improper conduct, lack of truthfulness and to otherwise cause the Plaintiffs harm and violate their federal and state constitutional rights, or to permit these action to take place with their knowledge or consent, actual and/or implied.

55. Upon information and belief, the Defendant P.O. MAX KATZ herein and the Precinct to which he was assigned has been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the Defendants , THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT CITY OF NEW YORK on notice that the Defendant P.O. MAX KATZ herein was likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.
56. Upon information and belief, Defendant, CITY OF NEW YORK, failed to put into place and otherwise maintained an inadequate structure for risk containment and stress management relative to its police officers. Inter alia, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT to function at levels of significant and substantial risk to the public.
57. As a result of the foregoing conscious policies, practices, customs or usages, Defendant, CITY OF NEW YORK, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of

being the victims of violent behavior. Such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to Plaintiffs herein.

58. As a result of the foregoing, the Plaintiffs were caused to suffer emotional trauma, in violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

59. As a result of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

60. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "59" above as if fully set forth herein.

61. The Defendant, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "THE CITY OF NEW YORK") hired and retained in its employ Defendant P.O. MAX KATZ, with knowledge that said police officer lacked the experience to be employed by the aforementioned Defendants, and therefore, was unfit to be a police officer.

62. The Defendant, CITY OF NEW YORK, hired and retained in its employ Defendant P.O. MAX KATZ, with knowledge that said police officer lacked the department to be employed by the aforementioned Defendants, and therefore, was unfit to be a police officer.

63. The Defendant, CITY OF NEW YORK, hired and retained in its employ Defendant, P.O. MAX KATZ with knowledge that said police officer had vicious propensities and was, therefore unfit to be a police officers.
64. As a result of the foregoing, the Plaintiffs were caused to suffer emotional injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.
65. As a result of the foregoing, the Plaintiffs, demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

66. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "65" above as if fully set forth herein.
67. The Defendants' conduct, jointly and severally, towards the Plaintiffs was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
68. The Defendants, jointly and severally, acted with the desire to cause the Plaintiffs economic damages, mental distress, or acted under circumstances known to them which made it substantially certain that they would cause such damage and distress to said Plaintiffs.
69. The Defendants, jointly and severally acted with utter disregard of the consequences of their actions.
70. As a result of the foregoing, the Plaintiffs were caused to suffer violation of civil rights, negligent and intentional infliction of emotional distress,

anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

71. As a result of the foregoing, the Plaintiffs, demand judgment against Defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

72. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "71" above as if fully set forth herein.
73. The actions of Defendants heretofore described resulting from the subject incident, detention, assault and battery, and use of excessive force constitute an unlawful imprisonment, assault and battery, and use of excessive force, which deprived the Plaintiffs of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §1983 and the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the Defendants' their agents, servants and/or employees, and that officer involving the detention, harassment, assault and battery of individuals, including Plaintiffs.
74. That in the event that the Plaintiffs are successful in the prosecution of the aforesaid claim(s), the Plaintiffs shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of said attorneys fees from the Defendants.

75. As a result, the Defendants became liable to the Plaintiffs in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

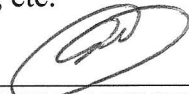
76. The Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "75" above as if fully set forth herein.
77. The Defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "THE CITY OF NEW YORK") through its agents servants and employees including but not limited to P.O. MAX KATZ negligently, recklessly, maliciously, did not differentiate between criminal matters and a civil dispute between the plaintiffs and their tenant.
78. The Defendants, THE CITY OF NEW YORK through its agents servants and employees including but not limited to P.O. MAX KATZ negligently, recklessly, maliciously involved themselves in matters which are properly resolved via civil remedies.
79. The Defendants, THE CITY OF NEW YORK through its agents servants and employees including but not limited to P.O. MAX KATZ negligently, recklessly, maliciously entered into the Plaintiffs' private residence.
80. The Defendants, THE CITY OF NEW YORK through its agents servants and employees including but not limited to P.O. MAX KATZ negligently, recklessly, maliciously acted as a judge and jury in a civil matter.
81. The Defendants, THE CITY OF NEW YORK through its agents servants and employees including but not limited to P.O. MAX KATZ negligently,

recklessly, maliciously failed to obtain a warrant for entering said premises.

WHEREFORE, the Plaintiffs, respectfully demand judgment against Defendants, THE CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT including, but not limited to Defendant, P.O. MAX KATZ and request the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: Kings County, New York
November 21, 2013

Yours, etc.



ELLIOTT KATSNELSON, ESQ.
1711 Kings Highway – 3rd Floor
Brooklyn, NY 11229
(718) 306-1570

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GARRY OBERMAN and YULIA OBERMAN,

Plaintiffs,

Index No.: _____

-against-

THE CITY OF NEW YORK, THE NEW YORK
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Defendants.

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**NOTICE REGARDING AVAILABILITY OF
ELECTRONIC FILING SUPREME COURT CASES**

PLEASE TAKE NOTICE that plaintiff(s)/petitioner(s)
[defendant(s)/respondent(s)] in the case captioned above intends that this matter
proceed as an electronically-filed case in the New York State Courts Electronic Filing
System ("NYSCEF") in accordance with the procedures therefor, set forth in Uniform
Rule 202.5-b and described below. Under that Rule, filing and service of papers by
electronic means cannot be made by a party nor can electronic service be made upon
a party unless that party has consented to use of the System for the case in question.
Within ten days after service of this Notice, each party served should indicate
whether or not it consents to electronic filing and service through NYSCEF for this
case. (See Instruction # 2 below.)

General Information

Electronic filing offers significant benefits for attorneys and litigants, permitting
documents to be filed with the County Clerk and the court and served, between or

among consenting parties, by posting the documents on the NYSCEF Website, which can be done at any time of the day or night on any day of the week. There is no fee to use the NYSCEF System, whether for filing, service, or consultation of the electronic docket, nor is there a charge to print documents from the docket. Normal filing fees must be paid, but this can be done by credit or debit card on-line. For additional procedures and information, see Uniform Rule 202.5-b, any e-filing protocol that may have been promulgated by the court in question, and the NYSCEF Website at www.nycourts.gov/efile.

Instructions

1. Service of this Notice constitutes consent to e-filing and a statement of intent by the undersigned to use the NYSCEF System in this case. When an action or proceeding is being commenced through the NYSCEF System, this Notice must accompany service of the initiating papers.
2. **Within ten days after service of this Notice**, the party served should consent to e-filing either: (i) by filing with the court and serving on all parties of record a consent to e-filing, or (ii) if the party or attorney of record is an authorized e-filing user, by filing the consent electronically in the manner provided at the NYSCEF site. If one party or some but fewer than all parties consent, NYSCEF may be used by and between or among consenting parties.
3. Each participating attorney, unless already registered, or self-represented party must **PROMPTLY** complete a Filing User Registration form (see the “Forms” section of the Website) and submit it to the NYSCEF Resource Center (efile@courts.state.ny.us) in order to obtain the confidential Filing User Identification Number and Password necessary to use the system.

4. For additional information about NYSCEF, see the *User's Manual* and *Frequently Asked Questions* on the Website, or contact the court in question or the NYSCEF Resource Center (at 646-386-3033 or efile@courts.state.ny.us).

Dated: Kings County, New York
November 21, 2013

Yours, etc.



ELLIOTT KATSNELSON, ESQ.
1711 Kings Highway – 3rd Floor
Brooklyn, NY 11229
Tel: (718) 306-1570
Fax: (718) 306-1571
E-Mail: TalkWithLawyer@aol.com

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss:
County Of Kings)

Garry Oberman, being duly sworn, deposes and says that I am the plaintiff in this action and that I have read the foregoing complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.

Garry Oberman

Garry Oberman

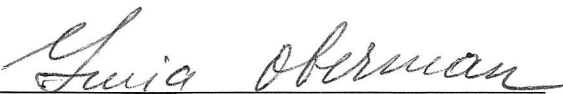
Sworn to before on the
21st day of November, 2013

Notary Public
IGOR OBERMAN
NOTARY PUBLIC - STATE OF NEW YORK
NO. 02OB6008092
QUALIFIED IN KINGS COUNTY
MY COMMISSION EXPIRES APRIL 6, 2014

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss:
County Of Kings)

Yulia Oberman, being duly sworn, deposes and says that I am the plaintiff in this action and that I have read the foregoing complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.



Yulia Oberman

Sworn to before on the
21st day of November, 2013

Notary Public

IGOR OBERMAN
NOTARY PUBLIC - STATE OF NEW YORK
NO. 020B6005092
QUALIFIED IN KINGS COUNTY
MY COMMISSION EXPIRES APRIL 6, 2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

GARRY OBERMAN and YULIA OBERMAN,

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Defendants.

**SUMMONS WITH COMPLAINT
NOTICE OF ELECTRONIC FILING**

**ELLIOTT KATSNELSON, ESQ.
Attorney for the Plaintiffs
1711 Kings Highway – 3rd Floor
Brooklyn, NY 11229
(718) 306-1570**

ATTORNEY CERTIFICATION (Sec. 130-1.1-a of 22 NYCRR)

The undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information, belief and reasonable inquiry, the contentions contained in the above referenced document(s) are not frivolous.



ELLIOTT KATSNELSON, ESQ.